



CHAPTER iii.

An Act to provide for the creation and management of A.D. 1908.
the Madras Railway Annuities and for other purposes.
[27th March 1908.]

WHEREAS the Secretary of State in Council of India (hereinafter referred to as "the Secretary of State") by virtue of the power vested in him under the contracts between himself or his predecessors in title the East India Company and the Madras Railway Company (hereinafter called "the Company") the dates of which contracts are specified in Schedule C. to this Act gave notice on the 30th day of April 1907 to the Company of his intention to purchase the railways and works constructed under the said contracts and under or in accordance with any arrangement between the Secretary of State or the Government of India and the Company together with the telegraphs (if any) and the engines carriages stock plant and machinery belonging to the said railways and works:

And whereas on the 31st day of December 1907 all the land provided with the said railways thereon and all buildings works fixed machinery telegraphs and conveniences became vested in the Secretary of State subject to such debts and liabilities as have been incurred by the Company to His Majesty or the Secretary of State or to any person or persons with the sanction of the Secretary of State and to interest on such of the said debts as carry interest and the Company thereupon gave up possession thereof to the Secretary of State together with the engines carriages stock plant and machinery belonging to the said railways and works and all plans surveys sections books printings writings and documents whatsoever in anywise connected with the undertaking and affairs of the Company;

payable on the 1st day of January 1908 and also the interest falling due on that date on all the debentures specified in the said schedule : A.D. 1908.

And whereas the Secretary of State instead of paying the said sum of twelve million eight hundred and nineteen thousand five hundred and fifty-eight pounds six shillings and threepence on the 31st day of December 1907 has under clause 12 of the contract between the said Secretary of State and the Company on the 2nd day of January 1871 declared his option to pay an annuity commencing on the 1st day of January 1908 and to continue during the residue of the term of ninety-nine years specified in the said last-mentioned contract :

And whereas the rate of interest to be used in calculating the said annuity has been ascertained in accordance with an agreement between the Secretary of State and the Company modifying the provision in that behalf contained in clause 12 of the said contract of 1871 and such annuity has been accordingly calculated by the Secretary of State and is to be an annual sum of five hundred and fifty-three thousand three hundred and ninety-seven pounds twelve shillings payable by a first instalment of one hundred and thirty-eight thousand three hundred and forty-nine pounds eight shillings for a quarter year on the 1st day of April 1908 and by subsequent half-yearly instalments of two hundred and seventy-six thousand six hundred and ninety-eight pounds sixteen shillings on the 1st day of October and the 1st day of April in every year until the 1st day of April 1956 on which day the last instalment is payable :

And whereas it is expedient to make provision for creating a sinking fund so as to enable the several holders of stock on exchanging their stock for annuities to hold at their option annuities with a sinking fund attached thereto as well as annuities with no such sinking fund :

And whereas with the sanction of the Secretary of State the existing registers of stock and of transfers of the Company have been closed since the 1st day of December 1907 :

And whereas it is expedient to sanction the closing as afore-said of the existing registers of stock and of transfers and to provide for the registration and transfer and for the distribution and management of the said annuities :

And whereas the Secretary of State has expressed his intention of applying not exceeding one million five hundred thousand

VI.—Unclaimed or Suspended Interest or Annuities.

A.D. 1908.

VII.—Exchange of Annuities for Stock of the Madras and Southern Mahratta Railway Company Limited.

VIII.—Powers of Board and Dissolution of Company.

PART II.

TERMINATION OF EXISTING CONTRACTS.

4. As from the thirty-first day of December one thousand nine hundred and seven the funds of the Madras Railway Provident Institution and the fine fund and the employes guarantee fund and contractors security fund as the same respectively stood on the thirty-first day of December one thousand nine hundred and seven and the estate and interest of the Company in their leasehold premises at Broad Street Place in the city of London (but not the interest of the Company in the profits of the Company's undertaking for the half-years ending the thirtieth day of June one thousand nine hundred and seven and the thirty-first day of December one thousand nine hundred and seven respectively or in any other profits remaining undistributed on the thirty-first day of December one thousand nine hundred and seven nor the property mentioned in Schedule B. to this Act annexed) shall be deemed by virtue of this Act to have been transferred to and vested in the Secretary of State to be held (as regards the said funds) for the same purposes for which the same funds respectively have been hitherto employed And as from the said thirty-first day of December one thousand nine hundred and seven the Secretary of State subject to the provisions of the section of this Act whereof the marginal note is "Unclaimed interest and surplus profits and debenture principal" shall have no claim against the Company under any of the hereinbefore mentioned contracts for or in respect of any sum or sums of money which may have been at any time advanced to the Company in respect of interest on the capital of the Company by the East India Company or by the Secretary of State or for or in respect of any sum or sums of money which may have been at any time advanced to the Company by the East India Company or by the Secretary of State in respect of interest on any debentures of the Company or for or in respect of the payment of the principal moneys secured by such debentures or any of them or for or in respect of any sum or sums of money

Vesting of certain funds and property in Secretary of State.

the debentures of the Company and the principal moneys secured by any debentures of the Company And the provisions of this section shall apply notwithstanding that any debenture may have been expressed to be payable at the bankers for the time being of the Company. A.D. 1908.

9. As from and after the thirty-first day of December one thousand nine hundred and seven the Secretary of State shall be bound to indemnify the Company against all liabilities in respect of their leasehold premises at Broad Street Place in the city of London and against all such debts and liabilities as they may have incurred to or with the sanction of the East India Company or the Secretary of State in respect of the said railways or any of them. Secretary of State to indemnify Company.

10. The costs and expenses incurred by the Company after the thirty-first day of December one thousand nine hundred and seven in making up the accounts of the Company to that date and in or about paying off any principal moneys or interest falling due after that date on any debentures of the Company and in or about settling accounts between the Secretary of State and the Company shall be treated as working charges of the Company's railway and undertaking for the half-year ending the thirty-first day of December one thousand nine hundred and seven and shall be dealt with accordingly The Company shall at all times have (for the purpose of settling accounts as aforesaid) a right of access to all books papers and vouchers relating to the Company or its affairs which may be or may have been handed over to the Secretary of State by the Company. Costs and expenses of accounts.

PART III.

ANNUITIES AND SINKING FUND.

11. For the purpose of carrying out and giving effect to the said contract of the second day of January one thousand eight hundred and seventy-one the Secretary of State is hereby authorised to create and shall create the annuity to which the Company is entitled in respect of the purchase of the said railways and property instead of the sum of twelve million eight hundred and nineteen thousand five hundred and fifty-eight pounds six shillings and threepence under the provisions of the said contracts and the said annuity shall have all the incidents of personal estate. Creation of annuity.

the closing of the register of stock have become entitled by transfer or otherwise to any old stock as proprietor of so much of the annuity as shall represent such old stock as aforesaid. A.D. 1908.

17. For the purpose of enabling the annuity trustees to provide a sinking fund to produce on the first day of April one thousand nine hundred and fifty-six the capital of such of the proprietors of old stock as shall be willing to avail themselves of the provision in that behalf in this Act contained the annuity trustees shall divide the holders of annuities (in this Act called "the annuitants") into two classes to be called respectively Class A and Class B. Class A shall consist of those annuitants who shall have elected to receive their annuities in full. Class B shall consist of those annuitants who shall have elected or shall be deemed to have elected to receive their annuities less a sum to be deducted for providing a sinking fund as in this Act prescribed. The board having previously to the passing of this Act sent or caused to be sent to each of the proprietors of old stock a notice offering to such proprietor an option (to be signified in writing to the Secretary of the Company within twenty-one days from the date of such notice) of accepting either annuities of Class A or annuities of Class B or partly one and partly the other and every person entitled to an annuity who within twenty-one days (or such extended period as the board shall allow or shall have allowed) from the date of any such notice shall not notify or shall not have notified his election pursuant to such notice shall be deemed to have elected to accept in respect of his old stock annuities of Class B.

Division of annuities into two classes and stockholders to choose class of annuities.

18. When the number and names of the annuitants of each class respectively shall have been so ascertained the annuity trustees shall cause to be inscribed in two books to be called respectively "the register of annuitants Class A" and "the register of annuitants Class B" the name of each annuitant of each class respectively with the amount of annuity to which he is entitled and shall issue to him a certificate of the amount of his holding and the old stock represented by such annuities shall be cancelled by the annuity trustees and until such cancellation the title to such old stock shall by virtue of this Act follow and be annexed to the title to the annuities representing the same. And every such annuitant may from time to time transfer his annuity or any part thereof in manner hereinafter provided. Provided always that no transfer be made of any fractional part of one pound of annuity but this proviso shall

Registers of annuitants.

payable to annuitants Class B so as to produce as near as may be on the first day of April one thousand nine hundred and fifty-six the capital sum represented by such annuity and shall from time to time invest the sum so deducted in the joint names of the governor and deputy governor of the Bank of England for the time being and the chairman and deputy chairman of the annuity trustees for the time being (which persons are in this Act called "the trustees of the sinking fund") on any investments for the time being authorised for the investment of trust moneys by the Trustee Act 1893 or any then subsisting statutory modification thereof and shall from time to time invest or cause to be invested the dividends and interest accruing from the said investments on the same securities or any of them and may in their discretion from time to time vary or exchange or cause to be varied or exchanged any investments made under the provisions of this section into or for other securities of any nature by this section authorised And the annuity trustees shall on the first day of April and the first day of October in each and every year or within two months after such dates respectively commencing with the first day of October one thousand nine hundred and eight cause to be published in the London Gazette and in at least one London daily newspaper a statement showing the total amount of the sums so invested by them and the securities on which the same are respectively invested with particulars of the amounts invested on each separate security and of the amount of each separate security so purchased.

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22. The trustees of the sinking fund shall subject as in this Act otherwise provided hold the said investments in trust for and on behalf of the several persons who shall on the first day of April one thousand nine hundred and fifty-six be respectively entitled thereto as by this Act provided subject nevertheless to the payment of all costs charges and expenses incurred by the said trustees in relation to the trust funds which costs charges and expenses the said trustees are hereby authorised from time to time to deduct and pay so far as the same are not otherwise provided for.

Declaration
of trust as to
sinking fund.

23. On the first day of April one thousand nine hundred and fifty-six or as near thereto as conveniently may be the trustees of the sinking fund shall realise and pay over to the annuity trustees and the annuity trustees shall thereupon divide the moneys representing the accumulations of the sinking fund so to be provided amongst the several persons whose names shall

Eventual
division of
sinking fund.

to the deductions to be made from time to time in respect of the sinking fund from the half-yearly payments of annuities Class B. A.D. 1908.

26. Any annuitant of Class A who shall under the provisions of the section entitled in the marginal note "Transfer of annuitants from Class A to Class B" at any time make a requisition in writing for his name to be transferred from the register of annuitants Class A to the register of annuitants Class B shall with his requisition forward to the annuity trustees for the purpose of cancellation by them the certificate of his holding of annuities of Class A together with such fee not exceeding two shillings and sixpence as the annuity trustees shall demand and the annuity trustees shall on the transfer being duly made cancel the said certificate and issue to him such fresh certificate or certificates as the case may require Provided that the annuity trustees may on proof to their reasonable satisfaction of the loss or destruction of any such last-mentioned certificate dispense with the production thereof.

Substitution of certificates on transfers from Class A to Class B.

27. Any annuities transferred from the register of annuitants Class A to the register of annuitants Class B shall be held subject to any charges liens or incumbrances affecting or comprising the same respectively immediately before such transfer and existing at the time of such transfer.

Protection of incumbrances on transfer from Class A to Class B.

28. The payment and management of the annuities of both classes and all matters and things incidental thereto shall be done provided made and effected by the annuity trustees who shall appoint for that purpose a secretary and such other officers as they may think necessary.

Management of annuities.

29. Subject to the regulations in this Act contained every annuitant may sell and transfer all or any of his annuities and every such transfer shall be by deed duly stamped in which the consideration shall be truly stated and such deed may be according to the form set forth in Schedule B to the Companies Clauses Consolidation Act 1845 mutatis mutandis.

Transfer of annuities to be by deed duly stamped.

30. The said deed of transfer (when duly executed) shall be delivered to the secretary of the annuity trustees and be kept by him and the secretary shall enter a memorial in a book to be called "the register of transfers of annuities" and shall on demand deliver a new certificate to the purchaser and for every such entry together with such certificate the annuity trustees may.

Transfers of annuities to be registered &c.

the will or the letters of administration or an official extract therefrom shall together with such declaration be produced to the secretary of the annuity trustees and upon such production in either of the cases aforesaid the secretary of the annuity trustees shall make an entry of the declaration in the said register of transfers. A.D. 1908.

34. The annuity trustees shall not be bound to see to the execution of any trust whether express implied or constructive to which any of the said annuities may be subject and the receipt of the party in whose name any annuities shall stand in the books of the annuity trustees or if they stand in the names of more parties than one the receipt of one of the parties named in the register of annuitants shall from time to time be a sufficient discharge to the annuity trustees for any moneys payable in respect of such annuities notwithstanding any trusts to which such annuities may then be subject and whether or not the annuity trustees shall have had notice of such trusts and the annuity trustees shall not be bound to see to the application of money paid upon such receipt. Annuity trustees not bound to regard trusts.

35. The annuity trustees shall not be bound to recognise any transfer containing a notice of any trust. Annuity trustees may refuse transfers containing notice of trusts.

36. The first annuity trustees shall be the persons other than the Government director who on the thirty-first day of December one thousand nine hundred and seven were directors of the Company Vacancies in the number of annuity trustees may be filled up by the annuity trustees for the time being subject to confirmation by a resolution passed at the next meeting of the annuitants of both classes at which a quorum is present. Every act or thing which shall prior to the passing of this Act have been done by the board and which if done by the annuity trustees or the board after the passing of this Act would have been valid and effectual shall be as valid and effectual as if this Act had been passed on the thirty-first day of December one thousand nine hundred and seven and as if the members of the board had been annuity trustees from that day. Appointment of first annuity trustees and confirmation of acts prior to appointment.

37. The number of annuity trustees may be from time to time reduced to not less than three or augmented to not more than seven in accordance with a resolution passed at any meeting of the annuitants of both classes and the annuity trustees for the time being may act notwithstanding any vacancy or vacancies in their number An annuity trustee may with the consent of the Number of annuity trustees.

provided for the purpose which shall be kept under the superintendence of the annuity trustees and every such entry shall be signed by the chairman of such meeting and such entry so signed shall be received in evidence in all courts and before all judges justices and others without proof of such respective meetings having been duly convened or held or of the persons making or entering such orders or proceedings being annuitants or annuity trustees respectively or of the signature of the chairman or the fact of his having been chairman all of which last-mentioned matters shall be presumed until the contrary be proved. A.D. 1908.

43. All acts done by any meeting of the annuity trustees shall notwithstanding it may be afterwards discovered that there was some defect in the appointment of any of such annuity trustees or that they or any of them were or was disqualified be as valid as if every such person had been duly appointed and was qualified to be an annuity trustee. Informalities in appointment of annuity trustees not to invalidate proceedings.

44. The Forged Transfers Acts 1891 and 1892 shall apply to the annuity trustees and to the annuitants of both classes as if the annuity trustees were a company within the meaning of those Acts and as if the annuities of both classes were their funds but so that the maximum fee authorised by subsection (2) of section 1 of the Forged Transfers Act 1891 shall be one shilling on every one pound of annuities transferred and so also that section 3 of the Forged Transfers Act 1892 shall apply as if the words "with a minimum charge equal to that for one pound of annuities transferred" had been therein substituted for the words "with a minimum charge equal to that for twenty-five pounds" Any fees received by the annuity trustees under the said Acts may be applied in paying for any such insurance as is referred to in subsection (2) of section 1 of the Forged Transfers Act 1891. Application of Forged Transfers Acts.

45. Meetings of the annuitants of both classes shall be convened once in each year on such date as the annuity trustees may appoint by the annuity trustees for the time being It shall be lawful for twenty or more annuitants holding in the aggregate not less than one-twentieth of the annuities of both classes by writing under their hands at any time to require the annuity trustees to call a meeting of annuitants and such requisition shall fully express the object of the meeting required to be called and shall be left at the office of the annuity trustees or given to at least three of the annuity trustees or left at their last or usual Meetings of annuitants.

52. The votes may be given either personally or by proxies being annuitants authorised by writing according to the forms prescribed in the Companies Clauses Acts 1845 and 1888 respectively mutatis mutandis or in forms to the like effect under the hand of the annuitant nominating such proxy or if such annuitant be a corporation then under their common seal and every proposition at such meeting shall be determined by the majority of votes of the parties present including proxies the chairman of the meeting being entitled to vote not only as a principal and proxy but to have a casting vote if there be an equality of votes Provided that where the annuitant is a body corporate the proxy may be any member of such body though not personally an annuitant.

A.D. 1908.
Manner of
voting.

53. No person shall be entitled to vote as a proxy unless the instrument appointing such proxy shall have been transmitted to the secretary of the annuity trustees not less than forty-eight hours before the time appointed for holding the meeting of annuitants at which such proxy is to be used.

Regulations
as to proxies.

54. If several persons be jointly entitled to an annuity of either class the person whose name stands first on the register of annuitants of that class as one of the holders of such annuity shall for the purpose of voting at any meeting of annuitants be deemed the sole proprietor thereof and on all occasions the vote of such first-named annuitant either in person or by proxy shall be allowed as the vote in respect of that annuity without proof of the concurrence of the other holders thereof.

Votes of
joint annui-
tants.

55. At any meeting of annuitants if a poll be not demanded a declaration by the chairman that a resolution has been carried shall be sufficient evidence thereof without proof of the number or proportion of votes recorded in favour of or against the same.

Evidence of
resolutions of
meetings of
annuitants.

PART IV.

PROTECTION OF TRUSTEES.

56. And whereas a large portion of the stock of the Company is now held by trustees Be it enacted that subject to the proviso in this section contained any person or persons holding stock of the Company as trustee or trustees may accept the annuities to which he or they shall be entitled in lieu of such stock as by this Act provided and such acceptance shall be lawful notwithstanding that it may have been signified before the passing of this Act and

Trustees.

whole of his old stock or of an aliquot portion of the whole of his old stock such disposition shall in the absence of contrary intention declared by the proprietor in the will or other testamentary instrument operate in the same manner and to the same extent as if the proprietor had in such will or other testamentary instrument disposed in favour of the same persons and for the same interests of the annuities allotted or to be allotted in respect of the particular sum of old stock or of the whole or any aliquot part of the whole of the annuities allotted or to be allotted to him in respect of his old stock but not so as to deprive any legatee of old stock of any rights or privileges remaining attached thereto after the passing of this Act. A.D. 1908.

PART V.

EXPENSES OF MANAGEMENT.

60. In order to provide for the expenses of the payment and management of the said annuities the annuity trustees may on each and every half-yearly or other day appointed for the payment of such annuities deduct from the sum so to be paid to every annuitant of either class a sum not exceeding one half per cent. thereon and every annuitant of either class shall allow such deduction accordingly. The sums so deducted and the fees to be paid to the annuity trustees under this Act shall be applied by the annuity trustees in paying the expenses aforesaid and also remuneration at the rate of one thousand pounds per annum to the annuity trustees such remuneration to be divided among the annuity trustees as the majority of them shall from time to time determine and to be calculated as from the date on which the remuneration of the directors of the Company as such directors shall cease to be paid out of the moneys standing to the said separate fund account. Deduction
for expenses
of managing
annuities.

61. In every case where by this Act the board or the annuity trustees are required to send or cause to be sent or where the board are herein stated to have sent or caused to be sent any notice to any proprietor or proprietors of stock of the Company or to any annuitant it shall be sufficient to have sent or caused to be sent or to send or cause to be sent such notice by the post as a prepaid letter addressed to such proprietor or annuitant or in the case of joint proprietors or of persons jointly entitled to an annuity to the first named on the Notices to
stockholders.

this Act before prescribed pay to the annuity trustees so much of such unclaimed annuities as represents the deduction by this Act authorised to be made by the annuity trustees in respect of the authorised deductions for the sinking fund in this Act before mentioned. Provided also that notwithstanding the enactment in this section contained the Secretary of State shall continue to pay to the annuity trustees in respect of any annuities representing unclaimed stock of the Company and in respect of any unclaimed annuities any sum which by this Act the annuity trustees are authorised to deduct from the annuities payable to the annuitants of both classes respectively. When the time for division of the moneys representing the accumulations of the said sinking fund shall arrive the Secretary of State shall be entitled to such part of such accumulations as may be represented by any annuities of Class B at that time unclaimed but subject to claims thereafter to be established.

A.D. 1908.

64. The Secretary of State shall be bound to indemnify the annuity trustees against all claims in respect of any annuities his obligation to pay which is by the last preceding section suspended and in respect of any moneys representing unclaimed annuities at any time repaid to him by the annuity trustees and the remedy of any person claiming to be entitled to any such annuities or moneys shall be against the Secretary of State in manner by this Act after provided and not against the annuity trustees or the Company.

Secretary of State to indemnify annuity trustees against suspended annuities.

65. The Secretary of State shall hold any annuities his obligation to pay which is by this Act suspended and any moneys representing unclaimed annuities at any time repaid to him by the annuity trustees and any moneys under the provisions of this Act at any time repaid to him by the Company subject to the claim of any person who may at any time in manner by this Act after provided establish his claim thereto.

Suspended and un-claimed annuities to be subject to claims.

66. If and whenever any person claiming to be entitled to any moneys representing unclaimed interest dividends or profits or to any unclaimed annuities at any time repaid to the Secretary of State by the annuity trustees or to any annuities representing unclaimed stock of the Company or any unclaimed annuities the payment of which has under the provisions in that behalf in this Act before contained been suspended establishes his right thereto respectively to the satisfaction of the Secretary of State

Provision for claims established.

the court shall on application by the new claimant verified as the court requires order the Secretary of State to pay to such new claimant the sum of money to which he has established his claim or to purchase for him annuities of the class to which he has established his claim or (if such new claimant consent) to give him the current value of such annuities in India stock. A.D. 1908.

PART VII.

EXCHANGE OF ANNUITIES FOR STOCK OF THE MADRAS AND SOUTHERN MAHRATTA RAILWAY COMPANY LIMITED.

69. The Secretary of State may purchase by agreement from any proprietor of old stock or from any annuitant the amount of annuity to which such proprietor or annuitant is entitled or any portion thereof paying in exchange for the same to such proprietor or annuitant share capital stock of the Madras and Southern Mahratta Railway Company Limited (to be issued or transferred at the expense for stamp duty and otherwise of the Secretary of State). Purchase of annuity by Southern Mahratta stock.

70. The amount of any annuity purchased by the Secretary of State by means of Madras and Southern Mahratta stock shall at the expense of the Secretary of State be registered in the register of annuitants in the name of the Secretary of State by his official style and thereupon in case the annuity purchased be an annuity of Class B the trustees of the sinking fund shall at the expense of the Secretary of State raise out of the sinking fund or the investments or moneys representing the same an amount equal to the total of any authorised deductions for the sinking fund previously made from the annuity so purchased and shall pay such amount to the vendor. In case the annuity trustees shall on making any authorised deduction for the sinking fund from any annuity certify in writing to the trustees of the sinking fund that such deduction or any part of it is likely to be required to be raised under this section within not more than four months thereafter the annuity trustees shall be at liberty to deposit such deduction or such part of such deduction in a bank in the names of the trustees of the sinking fund in lieu of investing it in accordance with the section of this Act the marginal note of which is "Sinking fund" and the same provisions shall apply to the moneys so deposited as if the deposit were an investment made in accordance with the last-mentioned section. How an-
nuity pur-
chased dealt
with.

board shall dispose of the property mentioned in the said A.D. 1908.
Schedule B. as follows :—

- (a) In making a payment to the present directors of such sum as further remuneration for their past services as may be or have been approved by the stockholders or annuitants in general meeting such sum to be divided among them as they shall think proper or in default of agreement equally :
- (b) In paying such gratuities to the officers of the Company as may be or have been authorised by the stockholders or annuitants in general meeting :
- (c) In discharging any expenditure incurred by the board in connection with the winding up of the affairs of the Company not otherwise provided for by this Act including as part of such expenditure an allowance for the directors' remuneration after the thirty-first day of December one thousand nine hundred and seven sufficient with the sums provided for the purpose by the Secretary of State to make up such remuneration to the same rate as that paid during the year one thousand nine hundred and seven :
- (d) In setting aside such sum as may be or may have been authorised by the stockholders or annuitants in general meeting in order to form a contingent fund to be applied to such purposes as may be authorised by the stockholders or annuitants in general meeting :
- (e) In discharging any obligation of the Company in respect whereof the Secretary of State is not bound to indemnify the Company :
- (f) In making any other payments authorised by the stockholders or annuitants in general meeting :
- (g) In paying and distributing any balance left over after making or providing for the payments referred to in paragraphs (a) to (f) inclusive to and among the several proprietors whose names were on the register of stockholders on the second day of December one thousand nine hundred and seven or their representatives in proportion to the amount of old stock registered in the names of such proprietors on that day without regard (save as hereinafter provided) to the subsequent title to the old stock or to any annuities representing the old stock.

The SCHEDULES referred to in the foregoing Act.

A.D. 1908.

SCHEDULE A.

DEBENTURES.

			£
3	per cent. debentures to bearer due	1 January 1911	- 80,000
3	per cent. debentures to bearer due	1 August 1910	- 300,000
3 $\frac{1}{4}$	per cent. debentures registered due	1 July 1909	- 15,800
3 $\frac{1}{4}$	per cent. debentures to bearer due	1 July 1909	- 158,600
3 $\frac{1}{4}$	per cent. debentures registered due	1 January 1908	- 11,300
3 $\frac{1}{4}$	per cent. debentures to bearer due	1 January 1908	- 42,000
3 $\frac{1}{4}$	per cent. debentures registered due	1 July 1910	- 300
3 $\frac{1}{4}$	per cent. debentures registered due	1 July 1911	- 60,700
3 $\frac{1}{4}$	per cent. debentures to bearer due	1 July 1911	- 150,000
3 $\frac{1}{4}$	per cent. debentures registered due	1 July 1912	- 9,700
3 $\frac{1}{4}$	per cent. debentures to bearer due	1 July 1912	- 140,000
3 $\frac{1}{4}$	per cent. debentures to bearer due	1 July 1912	- 100,000
3 $\frac{1}{2}$	per cent. debentures registered due	1 January 1908	- 47,400
3 $\frac{1}{2}$	per cent. debentures to bearer due	1 January 1908	- 34,000
3 $\frac{1}{2}$	per cent. debentures to bearer due	19 May 1911	- 350,000
3 $\frac{1}{2}$	per cent. debentures to bearer due	1 January 1912	- 75,000
3 $\frac{3}{4}$	per cent. debentures to bearer due	1 January 1910	- 5,000

EXTENSIONS ACCOUNT.

3 $\frac{1}{2}$	per cent. debentures to bearer due	19 May 1911	- 150,000
3 $\frac{1}{4}$	per cent. debentures to bearer due	1 July 1910	- 62,000
3 $\frac{1}{4}$	per cent. debentures to bearer due	1 July 1911	- 83,000
3 $\frac{3}{4}$	per cent. debentures to bearer due	1 May 1910	- 100,000
3 $\frac{3}{4}$	per cent. debentures to bearer due	1 November 1913	- 170,000